

4. Fees and costs shall be paid no later than thirty (30) days from the date of notice of entry of this order.
5. Plaintiff's counsel shall prepare a proposed order conforming to the foregoing, attaching the court's tentative ruling no later than five (5) days from the date of this hearing.

20. 9:00 AM CASE NUMBER: C25-02024

CASE NAME: CHRISTY WILLIAMS VS. SP MANAGEMENT SERVICES, INC.

***HEARING ON MOTION IN RE: TO ABATE OR IN ALT MOTION TO STAY PROCEEDINGS**

FILED BY: NATIONAL SURGICAL HOSPITALS, LLC

TENTATIVE RULING:

Before the Court is Defendant SP Management Services, Inc., Pain Management Associates Inc., Sequoia Surgical Pavilion LLC, NSH California, LLC, NSH Management of California, LLC, National Surgical Hospitals, LLC, Sequoia Surgical Center, L.P., Sequoia Surgical Center Holding Company, LLC, Surgery Partners (collectively, "Defendants") motion to abate the class action and representative PAGA First Amended Complaint or, in the alternative, move to stay the proceedings on the grounds that earlier-filed class and PAGA actions are currently pending that encompass the claims set forth in this case. In opposition, Plaintiff requests only that the Court stay the action rather than abate it.

The motion is **granted** and this proceeding is stayed until one of the following occurs:

- a. The *Johnson*, *Williams*, and *Patton* actions are finally resolved by judgment, settlement, or otherwise;
- b. The coordination motion judge, or if Plaintiff's petition is granted, the coordination trial judge, issues an order that the stay is lifted in whole or in part; or
- c. The Court enters a further order upon the noticed motion of either side.

21. 9:00 AM CASE NUMBER: C25-02316

CASE NAME: ANTHONY PROVENCIO VS. ASPEN SURGERY CENTER, LLC,

***HEARING ON MOTION IN RE: TO ABATE**

FILED BY: ASPEN SURGERY CENTER, LLC,

TENTATIVE RULING:

Before the Court is Defendant Aspen Surgery Center, LLC ("Defendant")'s motion to abate the class action complaint or, in the alternative, motion to stay the proceedings on the grounds that two earlier-filed class actions are currently pending that encompass the claims set forth in this case (and that exclusive concurrent jurisdiction applies). Plaintiff Anthony Provencio and Plaintiff Darlene Yvonne Enersen (collectively, "Plaintiffs") oppose the motion on several grounds.

As a threshold issue, Courts have held that the rule of exclusive concurrent jurisdiction is subject to waiver and should be raised by demurrer where the issue appears on the face of the complaint and by answer where factual issues must be resolved, followed by a motion to abate or for summary judgment. (*People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 771; see *BBBB Bonding Corp. v. Caldwell* (2021) 73 Cal.App.5th 349, 374.) Defendant did not raise the issue by demurrer or answer. The Court declines to find waiver, however, because Plaintiffs have not argued